

Smt. Chandra Prabha Devi v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 26 September 2019 · Writ-C No. 30486 of 2019 · **Writ disposed; EE to decide representation under clause 6.5; recovery to abide.**

HEADNOTE

The Allahabad High Court disposed of a writ against an electricity recovery citation of Rs. 3,56,849 by directing the Executive Engineer to consider and decide the consumer's pending representation on alleged wrong billing in accordance with clause 6.5 of the U.P. Electricity Supply Code, 2005, after hearing, preferably within six weeks. Recovery was to abide that decision.

FACTUAL SUMMARY

Smt. Chandra Prabha Devi challenged a recovery citation dated 27 July 2019 for Rs. 3,56,849 as electricity dues, alleging she had been wrongly billed and that the Executive Engineer had not considered her grievance. She had already made a representation dated 10 July 2018. Counsel for the distribution company accepted it was a billing dispute for the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer, Dakshinchal Vidyut Vitran Nigam Limited, Hathras, was impleaded.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-executive-engineer

HOLDING

Where a consumer challenges a recovery citation for electricity dues as wrongly billed and a representation already lies before the Executive Engineer, the High Court, on the licensee's concession that the dispute is resolvable under clause 6.5 of the U.P. Electricity Supply Code, 2005, will dispose of the writ by directing the Executive Engineer to consider and decide that representation in accordance with law after hearing, and will make the recovery abide that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION OF RS. 3,56,849 CORRECTLY STATED THE ELECTRICITY DUES

Merits of the billing dispute left to the Executive Engineer under clause 6.5. ¶ 1